

02:00 PM **LINE 10**

25-CIV-03331

DIANA DUNKELIS VS. REUBEN J. DONIG, ET AL

DIANA DUNKELIS
REUBEN J. DONIG

BRADLEY J. MANCUSO
SCOTT R. RABER

DOING DEMURRER TO PLAINTIFF'S VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The unopposed demurrer of Defendants Reuben J. Donig (Donig) and Law Office of Reuben J. Donig (Law Office, and collectively defendants) to the Verified First Amended Complaint (FAC) by plaintiff Diana Dunkelis (plaintiff) is **SUSTAINED with leave to amend**.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Twelfth Cause of Action

The demurrer to the twelfth cause of action for sexual favoritism harassment is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

“Sexual favoritism” means that another employee has received preferential treatment with regard to promotion, work hours, assignments, or other significant employment benefits or opportunities because of a sexual relationship with an individual representative of the employer who was in a position to grant those preferences. (Judicial Council of California Civil Jury Instruction 2521C.) The elements of a cause of action for sexual favoritism harassment are:

1. That [name of plaintiff] was [an employee of/an applicant for a position with/a person providing services under a contract with/an unpaid intern with/a volunteer with] [name of defendant];
2. That there was sexual favoritism in the work environment;
3. That the sexual favoritism was severe or pervasive;
4. That a reasonable [describe member of protected group] in [name of plaintiff]'s circumstances would have considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive because of the sexual favoritism;
5. That [name of plaintiff] considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive because of the sexual favoritism;

6. [Select applicable basis of defendant's liability:]

[That a supervisor [engaged in the conduct/created the sexual favoritism];]

[or]

[That [name of defendant] [or [his/her/nonbinary pronoun/its] supervisors or agents] knew or should have known of the sexual favoritism and failed to take immediate and appropriate corrective action;]

7. That [name of plaintiff] was harmed; and

8. That the conduct was a substantial factor in causing [name of plaintiff]'s harm.

Allegations of a romantic relationship between a supervisor and an employee, without more, do not give rise to a sexual harassment claim under the Fair Employment and Housing Act (FEHA). (*Proskel v. Gattis* (1996) 41 Cal.App.4th 1626, 1631.) In *Proskel*, the trial court granted summary adjudication of the plaintiff's sexual discrimination and sexual harassment claims against her employer under FEHA. (*Id.*, at p. 1629.) The Court of Appeal affirmed. (*Ibid.*) Significantly, other than favoritism, the plaintiff did not allege that her former employer led plaintiff or any other employee to believe that they could obtain favorable treatment from him if they became romantically involved with him. The plaintiff also did not present any facts that showed the manner in which the romantic affair was conducted was so indiscreet as to create a hostile work environment. (*Ibid.*) The plaintiff further did not present evidence of other pervasive conduct that created a hostile work environment. (*Id.*, at pp. 1629-1630.)

Here, the allegations are insufficient to support the claim that defendants engaged in sexual favoritism. Plaintiff worked as a paralegal, while defendant Leah Bottini (Bottini) was hired as a secretary. Plaintiff claims that a number of adverse employment actions were taken against her, but she fails to allege facts sufficient to support that they were taken because of sexual favoritism. For instance, plaintiff alleges being locked out of her computer and that Bottini was given remote access to all computers, but the FAC alleges that shortly after Bottini started, Donig informed plaintiff that Bottini knew a lot about computers and could take over IT if needed. (FAC, ¶ 56.) Thus, it is unclear whether such actions occurred due to sexual favoritism. Similarly, plaintiff fails to adequately allege facts to support that the freezing temperatures and conditions conducive to mold, fungi and bacteria were due to sexual favoritism.

B. Thirteenth Cause of Action

The demurrer to the thirteenth cause of action for age harassment is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action. This cause of action is alleged against the Law Office, but not Donig. (FAC, ¶ 235.)

Under the FEHA, it is unlawful "[f]or an employer ... because of ... age ... to harass an employee" (Gov. Code, § 12940, subd. (j)(1).) To establish a prima facie case of a hostile work environment, a plaintiff must show that (1) plaintiff is a member of a protected class; (2)

plaintiff was subjected to unwelcome harassment; (3) the harassment was based on plaintiff's protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581, citing *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.)

Plaintiff alleges that she was in her 60s while working for the Law Office. (FAC, ¶ 239.) The FAC alleges Bottini engaged in certain behaviors to intentionally sabotage every older worker, including plaintiff, and that Donig condoned these actions. (*Id.*, ¶¶ 54-67, 240.) Bottini allegedly persuaded Donig to terminate the contractual relationship with other older workers over 50, Mike Barnes (IT Technician) and Norma Scritzky (document retrieval support). (*Id.*, ¶ 55.) Donig also stated that they were old and did not know what they were doing. (*Id.*, ¶¶ 62, 66.) However, plaintiff does not allege any similar comments were made to her. As such, the allegations are insufficient to support that any claimed harassment was because of plaintiff's age.

C. Fourteenth Cause of Action

The demurrer to the fourteenth cause of action for FEHA retaliation is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

It is unlawful "[f]or any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (Gov. Code, § 12940, subd. (h).) In order to establish a prima facie claim for retaliation under FEHA, the plaintiff must show (1) the employee engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 636.) When the circumstances surrounding an employee's conduct are sufficient to establish that the employer knew that an employee is opposing practices forbidden under FEHA, the purpose of the antiretaliation provision is applicable whether or not the employee explicitly and directly told the employer. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1046-1047.)

The FAC alleges defendants retaliated against plaintiff for her complaints of harassment and discrimination, by taking adverse employment actions against plaintiff, including but not limited to, "subjecting her to differential and demeaning treatment, oppression, unhealthy work conditions (i.e. working in freezing temperatures and conditions conducive to mold, fungi, and bacteria), decrease in work load, unwelcome and inappropriate comments and behavior, threats of termination if she spoke out, and actual wrongful termination, in addition to subjecting Plaintiff to a work environment permeated with illegal and unwanted harassing and discriminatory conduct." (FAC, ¶ 256.) However, plaintiff fails to sufficiently allege facts to support complaints of harassment and discrimination, i.e. engaging in protected activity, as well

as that these actions were taken against her for such complaints, i.e. a causal link between engaging in protected activity and these adverse actions.

D. Fifteenth Cause of Action

The demurrer to the fifteenth cause of action for failure to prevent harassment, discrimination and/or retaliation is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

The FEHA provides that it is an unlawful employment practice “[f]or an employer...to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (Gov. Code, § 12940, subd. (k).) A plaintiff seeking to recover damages under Section 12940, subdivision (k) for failure to prevent harassment must show three elements: (1) plaintiff was subjected to harassment; (2) defendant failed to take all reasonable steps to prevent harassment; and (3) this failure caused plaintiff to suffer injury, damage, loss or harm. (*Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43-44.) Because plaintiff fails to allege facts sufficient to support her harassment claim, this claim also fails. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289 [a finding of harassment or discrimination of the employee was required before an employer could be held liable for failure to take all reasonable steps necessary to prevent employment discrimination and harassment].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 11:45 am